

Court No. - 29

Case :- WRIT - C No. - 22651 of 2019

Petitioner :- Abdul Kalam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajesh Kumar Pandey

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and learned counsel appearing for respondents No. 4 and 5.

The petitioner has filed this petition against the recovery citation dated 28.01.2019 by which a sum of Rs. 84,797.60/- is sought to be recovered from the petitioner as electricity dues.

The submission of counsel for the petitioner is that the bill of Rs. 84,797.60/- is incorrect and on the higher side and that the petitioner has disputed its correctness by filing a representation (annexure-3 to the writ petition).

The correctness of the electricity bill can be questioned by the petitioner in accordance with the provision of clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The petitioner has not moved any application disputing the correctness of the bill before the Executive Engineer.

In view of the aforesaid facts and circumstances, we find no substance in the writ petition and the same is dismissed with liberty to the petitioner to dispute the correctness of the bill, if any, before the Executive Engineer concerned.

The petition is, accordingly, **dismissed**.

Order Date :- 19.7.2019

Nirmal Sinha